

D. White

Date: 9/19/2013

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING, VARIOUS SECTIONS CONTAINED IN CHAPTERS 8.20, 8.24, 8.28 AND 8.32 WITHIN TITLE 8, HEALTH AND SAFETY, OF THE CHEYENNE CITY CODE RELATING TO GENERAL PROVISIONS PERTAINING TO FIRE PROTECTION AND REGULATIONS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various sections contained in Chapters 8.20, 8.24, 8.28 and 8.32 within Title 8, Health and Safety, of the Cheyenne City Code, relating to general provisions pertaining to fire protection and regulations are hereby amended as set out in this ordinance. Chapters and sections currently existing within Title 8, Health and Safety, not set out within this ordinance remain unchanged.

Section 2. That Chapter 8.20, Fireworks, is amended as follows:

8.20.050 Public displays – Licensing conditions.

A. Notwithstanding the provisions of Sections 8.20.010 and 8.20.020 of this chapter, a license may be granted for supervised public displays of fireworks by fair associations, amusement parks and other organizations or group of individuals. Licenses may be granted upon application to the city clerk after approval of the police and fire authorities, ~~the filing of a bond by the applicant as required by this section,~~ and payment of the license fee in the amount of one hundred fifteen dollars (\$115.00) per event or activity.

~~C. An applicant for a license must furnish a bond or certificate of insurance in an amount not less than three hundred thousand dollars (\$300,000.00) public liability and one hundred thousand dollars (\$100,000.00) property damage for the payment of all damages that may be caused either to a person or persons or to property by reason of the licensed display, and arising from any acts of the licensee, his or her agents, employees or subcontractors.~~

C. AN APPLICANT FOR A LICENSE SHALL FILE WITH THE CITY CLERK A CERTIFICATE OF COMMERCIAL GENERAL LIABILITY INSURANCE IN A MINIMAL AMOUNT OF \$1,000,000 PER OCCURRENCE AND \$2,000,000 AGGREGATE OR IN AN AMOUNT AS REQUIRED BY THE CITY RISK MANAGER OR CITY ATTORNEY, INDEMNIFYING THE PUBLIC AGAINST DAMAGES SUSTAINED EITHER TO A PERSON OR PERSONS OR TO PROPERTY BY REASON OF THE LICENSED DISPLAY, AND ARISING FROM ANY ACTS OF THE LICENSEE, HIS OR HER AGENTS, EMPLOYEES OR SUBCONTRACTORS. IN ADDITION IF THE DISPLAY IS ON PROPERTY OWNED BY THE CITY OF CHEYENNE, THE CERTIFICATE OF INSURANCE WILL LIST THE CITY OF CHEYENNE AS CERTIFICATE HOLDER AND ADDITIONAL INSURED BY ENDORSEMENT.

Section 3. That Chapter 8.24, Flammable and Combustible Liquids, is amended as follows:

8.24.010 Codes adopted by reference.

Codes promulgated by the ~~National Fire Code Volumes 2, 3 and 13,~~ **NATIONAL FIRE PROTECTION ASSOCIATION PAMPHLET NO. 30**, National Fire Protection Association Pamphlet No. 385, and National Fire Protection Association Pamphlet No. 329, and their appendices and the latest edition of the ~~Uniform~~ **INTERNATIONAL** Fire Code as adopted by ~~other ordinances~~ **PURSUANT TO CHEYENNE CITY CODE, CHAPTER 8.12**, are adopted and made a part of this chapter involving flammable and combustible liquids.

8.24.020 Aboveground tanks in city limits.

It is unlawful to have aboveground storage tanks exceeding sixty (60) gallons except ~~in refinery complexes and bulk plants, which shall be in heavy industrial (HI) zone areas only; except, however, that aboveground storage tanks exceeding sixty (60) gallons may be permitted~~ in a **HEAVY INDUSTRIAL (HI)**, light industrial (LI) or public (P) zone with the approval of, and under conditions established by, the chief of the Cheyenne fire department. Such tanks exceeding sixty (60) gallons in refinery complexes and bulk plants shall be in compliance with the National Fire Protection Association Pamphlet No. 30 ~~(1993 Edition)~~, and the ~~Uniform~~ **INTERNATIONAL** Fire Code.

8.24.060 Tank system tightness testing – Requirements.

D. ~~It is the duty of the operators~~ **EVERY OPERATOR OF ANY TANK** containing flammable ~~and~~ **OR** combustible liquids, ~~and~~ **OR** related equipment, ~~to~~ **SHALL** maintain daily records of flammable and combustible liquids stockS, as ~~proposed~~ **SPECIFIED** in the **INTERNATIONAL FIRE CODE AND THE CURRENT EDITION OF** American Petroleum Institute ~~Publication~~ **RECOMMENDED PRACTICE NO. 1621, Third Edition, 1977,** entitled **“BULK LIQUID STOCK CONTROL AT RETAIL OUTLETS.”** ~~“Recommended Practice for Bulk Liquid Stock Control at Outlets.”~~

E. ~~When any~~ **EVERY** user **OF ANY TANK CONTAINING ANY** flammable ~~OR and~~ combustible liquids ~~or related equipment, tanks and related equipment~~ **WHO** notices a loss of product, or is suspicious of a loss, or **NOTICES** the presence of water ~~is evident~~ in storage any such tank or ~~tanks~~ **RELATED EQUIPMENT, SHALL ADHERE TO** procedures from the National Fire Protection Association Pamphlet No. 329 and the recommended practices of liquid stock control outlined by **THE CURRENT EDITION OF** American Petroleum Institute ~~Publication~~ **RECOMMENDED PRACTICE Number NO. 1621, Third Edition, 1977.** ~~shall be adhered to.~~ **AND THE REQUIREMENTS OF THE INTERNATIONAL FIRE CODE.** Any loss of product, or suspicion of a loss, or presence of water ~~is evident~~ shall be reported immediately to the **FIRE PREVENTION BUREAU OF THE FIRE DEPARTMENT.** ~~fire prevention bureau of the fire department.~~

8.24.080 Discontinuance of use of flammable and combustible liquid tank(s).

A. EVERY OWNER, OPERATOR, OR USER OF ANY TANK WHICH HAS BEEN USED FOR THE STORAGE OF FLAMMABLE OR COMBUSTIBLE LIQUIDS, ~~Any person holding a business license shall, upon temporary or permanent discontinuance of the use of a~~ **ANY SUCH storage tank or tanks, immediately notify the FIRE PREVENTION BUREAU OF THE FIRE DEPARTMENT** ~~fire department, fire prevention bureau, in writing. EVERY REMOVAL AND EVERY DISPOSAL OF ANY SUCH storage tanks as WILL BE WITNESSED as directed by the city engineer and fire department, fire prevention bureau, AN OFFICER FROM THE FIRE PREVENTION BUREAU OF THE FIRE DEPARTMENT. ANY SUCH REMOVAL OR DISPOSAL which shall be in accordance with the provisions set forth in the standards of the National Fire Protection Association for the storage, handling and use of flammable and combustible liquids, "FLAMMABLE AND COMBUSTIBLE LIQUIDS CODE, Pamphlet No. 30", Article 15 of the Uniform Fire Code. , Uniform Building Code, and Uniform Building Code Standard AND THE INTERNATIONAL FIRE CODE. The word "temporary" does not mean the discontinuance of the use of a tank(s) due to being out of a product for a short period or a closed service station, if a diligent effort is made to secure a dealer or employee to re-open the facility. After discontinuance for six months of the use of a tank(s), representatives of the city shall be allowed to remove the tank(s) and charge the property owner for expenses involved.~~

B. WHEN THE REMOVAL OR DISPOSAL OF ~~When old-~~ **ANY TANK USED FOR THE STORAGE OF** ~~flammable and~~ **OR combustible liquids tank or tanks are to be removed as IS required BY THE** ~~in the Uniform~~ **INTERNATIONAL Fire Code, THE REMOVAL AND DISPOSAL MUST BE PERFORMED BY** ~~a licensed flammable and combustible liquids contractor. -must be in charge of such removal. However, EXCEPT THAT a qualified contractor, when supervised by a licensed flammable and combustible liquids contractor, may perform the removal of ANY such tank(s). When any TANK old USED FOR THE STORAGE OF flammable and OR combustible liquids tank(s) are IS removed, all possible liquids that remain in the tank(s)-are to~~ **SHALL be removed prior to any excavation.**

8.24.100 Storage tank installation – Permits and inspection.

A. Any person, persons, firm, association, partnership, or corporation desiring to install **ANY TANK OR RELATED EQUIPMENT FOR THE STORAGE OF ANY** ~~flammable and~~ **OR combustible liquid, equipment AS** ~~designated in this chapter either above or below ground, must obtain a permit from the city engineer~~ **CHIEF BUILDING OFFICIAL** and pay the applicable fee as established **BY CITY CODE SECTION 15.08.030.** ~~by the table of building permit fees in the latest edition of the Uniform Building Code adopted by the city. The fee assessed will be for each storage tank. Application for storage tank permits must be accompanied by accurate plats or drawings showing the lot or tract of land, with the location, size and description of each tank, the layout of fill and vent pipes, the location and size of pump and specifications for the construction of each tank, its connections, fittings, openings, and safety appliances.~~

C. No tank or piping shall be buried or otherwise covered up until the tank has been air tested under the provisions in National Fire Protection Association Pamphlet No. 30 and the tank ~~or~~ **AND any RELATED piping AND EQUIPMENT HAVE** has been inspected and approved by the ~~city engineer~~ **CHIEF BUILDING OFFICIAL** and the **FIRE PREVENTION BUREAU OF THE FIRE DEPARTMENT.** ~~fire department, fire prevention bureau.~~

D. The ~~city engineer~~ **CHIEF BUILDING OFFICIAL** or **THE FIRE PREVENTION BUREAU OF THE FIRE DEPARTMENT** ~~fire department, fire prevention bureau,~~ will require any flammable and combustible liquid equipment be uncovered, at the owner's expense, if repairs or replacement are necessary or if they have been covered unlawfully.

8.24.110 Violations – Penalty.

A. Any person violating any of the provisions of this chapter pertaining to flammable ~~and~~ **OR** combustible liquids, or who has not received a proper license or permit shall be issued a stop work order **AS DIRECTED BY THE CHIEF BUILDING OFFICIAL PURSUANT TO THE MOST RECENTLY ADOPTED VERSION OF THE INTERNATIONAL BUILDING CODE.** ~~and assessed a maximum penalty of two hundred dollars (\$200.00) or ninety (90) days in jail.~~

B. ANY PERSON VIOLATING THE PROVISIONS OF THIS CHAPTER, OR CAUSING THE PROVISIONS OF THIS CHAPTER TO BE VIOLATED, WILL BE GUILTY OF A MISDEMEANOR PUNISHABLE PURSUANT TO THE GENERAL PENALTY PROVISION PROVIDED FOR IN SECTION 1.24.010 OF CITY CODE.

Section 4. That Chapter 8.28, Portable Fire Extinguishers and Hose Station Equipment, is amended as follows:

8.28.020 Business license required.

Every person who services and tests portable fire extinguishers and hose station equipment ~~for compensation~~ is required to obtain a business license. The license must state specifically whether it is issued for portable fire extinguishers or hose station equipment, or both. Applications, with nonrefundable annual licensing fee of ninety dollars (\$90.00), must be submitted to the office of city clerk. Upon approval by the **FIRE CHIEF OF THE FIRE DEPARTMENT AND** mayor ~~or city council~~, the city clerk will issue a license which will be effective for one year from date of issuance. General licensing provisions set forth in **CITY CODE** Chapter 5.04 apply to this type of license.

8.28.030 Servicing and testing.

All persons licensed must service and test all portable fire extinguishers and hose station equipment in accordance with the ~~Uniform~~ **INTERNATIONAL Fire Code Standards**, as adopted and referenced in Chapter 8.12.

8.28.050 Examination.

A. Applicants for a portable fire extinguisher and hose station equipment license are required to pass a written examination administered by the fire department **OR SUBMIT PROOF OF RECOGNIZED CERTIFICATION TO BE APPROVED BY THE FIRE DEPARTMENT, FIRE PREVENTION BUREAU.** The examination may be supplemented by practical tests or demonstrations deemed necessary to determine the applicant's knowledge and ability to service portable fire extinguishers and hose station equipment. The results of the examination shall be forwarded to the office of city clerk to accompany the license application.

8.28.060 Insurance.

All persons licensed are required to maintain current ~~public~~ **GENERAL** liability insurance equal to the minimum amount required of all other contractors pursuant to the provisions of **CITY CODE** Chapter 5.44, Contractors.

Section 5. That Chapter 8.32, Gasoline and Oil Dispensing Equipment, is amended as follows:

8.32.020 — Protection of equipment.

~~All pumps or other mechanical measuring devices used for retailing or dispensing gasoline must be securely locked so that no fluid can be withdrawn, except when the operation of pumps or other devices is under the supervision and in charge of an attendant.~~

Section 6. That this ordinance shall be in full force and effect upon approval and publication but not sooner than November 1, 2013.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

RICHARD L. KAYSEN, MAYOR

(S E A L)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

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